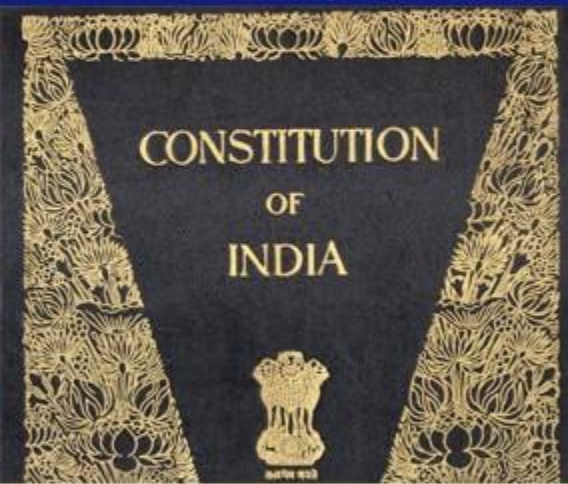


INDIAN POLITY



MODULE – 62

PARLIAMENT
QUALIFICATION PROCESS

MEMBERSHIP OF PARLIAMENT

CONSTITUTIONAL QUALIFICATIONS

- 1**
 1. Must be a **citizen** of India.
 2. Must make an **oath or affirmation** before the person authorised by the election commission. He swears:
 - (a) To bear true faith and allegiance to the Constitution of India
 - (b) To uphold the sovereignty and integrity of India
 3. He must be not less than **30 years** of age in the case of the Rajya Sabha and not less than **25 years** of age in the case of the Lok Sabha.
 4. He must possess other qualifications prescribed by Parliament.

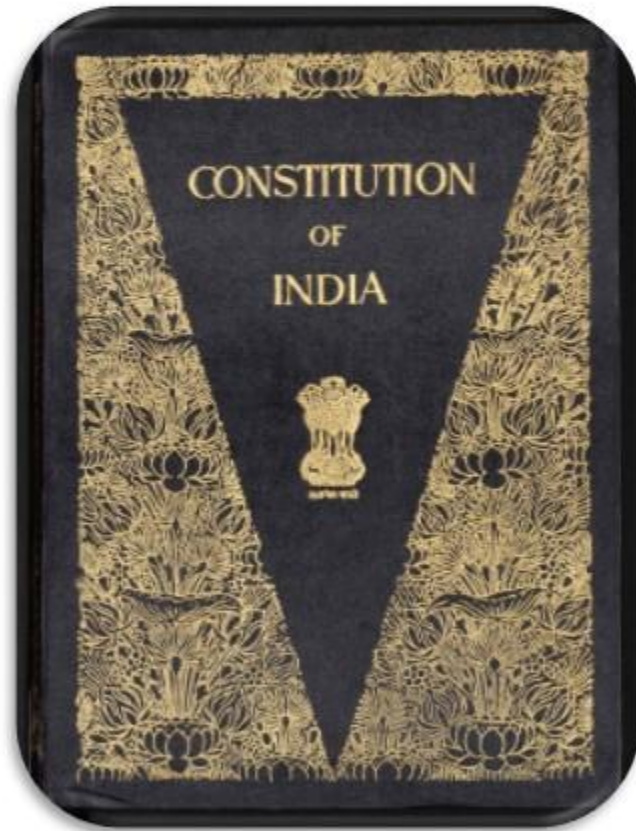
LEGAL QUALIFICATIONS

- 2** As per the Representation of People Act (1951):
 1. He must be registered as an **elector for a parliamentary constituency**.
 2. He must be a member of a scheduled caste or scheduled tribe in any state or union territory, if he wants to contest a seat reserved for them.

PARLIAMENT

MEMBERSHIP OF PARLIAMENT

DISQUALIFICATIONS



- 1** Under the Constitution, a person shall be disqualified for being elected as a member of Parliament:
 1. If he holds any **office of profit** under the Union or state government (except that of a minister or any other office exempted by Parliament).
 2. If he is of **unsound mind** and stands so declared by a court.
 3. If he is an **undischarged insolvent**.
 4. If he is **not a citizen of India** or has voluntarily acquired the citizenship of a foreign state or is under any acknowledgement of allegiance to a foreign state
 5. If he is **so disqualified under any law made by Parliament**.

MEMBERSHIP OF PARLIAMENT

DISQUALIFICATIONS

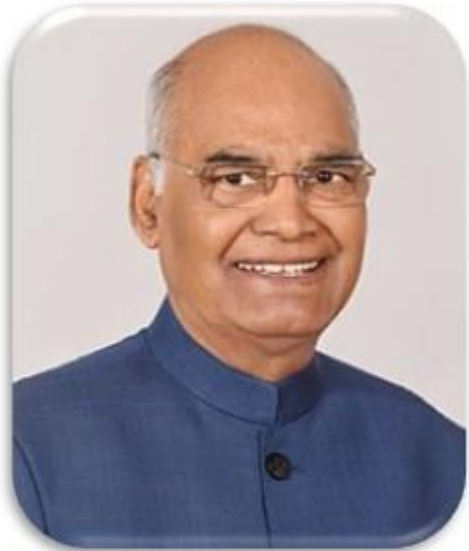


- 2 The Parliament has laid down the following additional disqualifications in the **Representation of People Act (1951)**:
1. He must not have been found guilty of certain **election offences or corrupt practices** in the elections.
 2. He must not have been convicted for any offence resulting in imprisonment for two or more years. But, the detention of a person under a preventive detention law is not a disqualification.
 3. He must not have failed to lodge an account of his **election expenses** within the time.
 4. He must not have any **interest in government contracts, works or services**.

PARLIAMENT

MEMBERSHIP OF PARLIAMENT

DISQUALIFICATIONS



On the question whether a member is subject to any of the above disqualifications, the President's decision is final. However, he should obtain the opinion of the election commission and act accordingly.

2

The Parliament has laid down the following additional disqualifications in the **Representation of People Act, 1951 (contd..)**:

5. He must **not be a director or managing agent** nor hold an office of profit in a corporation in which the government has at least 25% share.
6. He must not have been dismissed from government service for **corruption or disloyalty** to the State.
7. He must not have been convicted for **promoting enmity** between different groups or for the **offence of bribery**.
8. He must not have been punished for preaching and **practising social crimes such as untouchability, dowry and sati**.

MEMBERSHIP OF PARLIAMENT

DISQUALIFICATION ON GROUND OF DEFECTION

- 1 The Constitution also lays down that a person shall be disqualified from being a member of Parliament if he is so disqualified on the ground of defection under the provisions of the Tenth Schedule.



- 2 A member incurs disqualification under the defection law:
1. If he **voluntary gives up the membership of the political party** on whose ticket he is elected to the House.
 2. If he votes or abstains from voting in the House **contrary to any direction** given by his political party.
 3. If any **independently elected member** joins any political party.
 4. If any **nominated member** joins any political party after the expiry of six months.

PARLIAMENT

MEMBERSHIP OF PARLIAMENT

DISQUALIFICATION ON GROUND OF DEFECTION



The question of disqualification under the Tenth Schedule is decided by the Chairman in the case of Rajya Sabha and Speaker in the case of Lok Sabha

3 The question of disqualification under the Tenth Schedule is decided by the **Chairman** in the case of Rajya Sabha and **Speaker** in the case of Lok Sabha (and not by the president of India).

4 In 1992, the Supreme Court ruled that the decision of the Chairman/Speaker in this regard is **subject to judicial review**.

QUESTION: UPSC CSE MAINS QUESTION FOR GENERAL STUDIES PAPER 2 IN 2013.

The role of individual MPs (Members of Parliament) has diminished over the years and as a result healthy constructive debates on policy issues are not usually witnessed. How far can this be attributed to the anti-defection law, which was legislated but with a different intention?



UPSC



PARLIAMENT

MEMBERSHIP OF PARLIAMENT

WHAT IS ANTI-DEFECTION LAW?



- 1 The **Tenth Schedule** of Indian Constitution is popularly known as the **Anti-Defection Act**.
- 2 Original constitution had no such provisions. It was included in the Constitution in 1985 by the Rajiv Gandhi government.
- 3 The main intent of the law was to deter “the evil of political defections” by legislators motivated by the lure of office or other similar considerations.

MEMBERSHIP OF PARLIAMENT

WHAT ARE THE GROUNDS FOR DISQUALIFICATION UNDER THE ANTI-DEFECTION LAW?

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PARLIAMENT

MEMBERSHIP OF PARLIAMENT

POINTS TO BE NOTED REGARDING ANTI-DEFECTION



- The phrase **Aaya Ram Gaya Ram** is not some random Hindi idiom, but one, rooted in political history.
- It was in early 1967 that Haryana, then less than a year old, witnessed its first assembly election. That poll season, **Gaya Lal, an independent MLA**, changed parties twice within a few hours and thrice in 15 days to be a part of the new government.
- A few days later, the then home minister Yashwantrao Chavan used the phrase '**Aaya Ram, Gaya Ram**' in Parliament as he took a jibe at Gaya Lal, and it soon became the byword for defection.

- 1 Articles 102 (2) and 191 (2) deals with anti-defection.
- 2 The intention of the provision is to check the **corruption/horse trading** in parliament/ to check the popular phenomenon "**Aaya Ram Gaya Ram**" in the Indian polity which started in 1960's.
- 3 The law disallows **MPs/ MLAs** to **switch parties after elections**, make the members follow the whips issued by their party.

MEMBERSHIP OF PARLIAMENT

QUESTIONS OF 'SPLIT' AND 'MERGER': LOOPHOLES IN ANTI-DEFECTION LAW

- 1 Initially, the law allowed defections if it involved one-third members, ie. it had provisions regarding exemption from disqualification in case of a 'split' in a political party.
- 2 But undesirably it resulted in mass defections instead of individual defections.

REFORMS TO ANTI-DEFECTION LAW: 91st AMENDMENT

- 1 It omitted that provision from Tenth Schedule that allowed one-third of the parliamentarians/legislators to split from their parent party.
- 2 However, it allowed two-thirds of the members of a parliamentary/legislative party to merge with an existing political party or form a new political party.
- 3 Essentially what this constitutional amendment did was raise the wholesale defection bar from one-third to two-thirds.

PARLIAMENT

MEMBERSHIP OF PARLIAMENT

IS DISQUALIFICATION UNDER ANTI- DEFECTION LAW JUDICIALLY REVIEWABLE?



*Speaker sits as a tribunal while
deciding on defection cases.*

- 1 **Speaker/ chairman** of the house is the authority to decide on defection cases.
- 2 All proceedings in relation to any question on disqualification of a member of a House under this Schedule are deemed to be proceedings in Parliament or in the Legislature of a state.
- 3 **No court has any jurisdiction.** However, the decision can be brought to court after **Kihoto Hollohan case of 1992.**

PARLIAMENT

MEMBERSHIP OF PARLIAMENT

IS DISQUALIFICATION UNDER ANTI- DEFECTION LAW JUDICIALLY REVIEWABLE?



- 4 The law states that the decision is final and not subject to judicial review.
- 5 The Supreme Court struck down part of this condition.
- 6 It held that there may not be any judicial intervention until the presiding officer gives his order. However, the final decision is subject to appeal in the High Courts and Supreme Court.

PARLIAMENT

MEMBERSHIP OF PARLIAMENT

DOES ANTI-DEFECTION LAW CURTAIL THE RIGHT OF FREE SPEECH OF LEGISLATORS?



- 1 This issue was addressed by the five-judge Constitution Bench of the Supreme Court in 1992 (Kihoto Hollohan vs Zachilhu and others).
- 2 It held that the law does not violate any rights or freedoms of the legislators, or the basic structure of parliamentary democracy.

PARLIAMENT

MEMBERSHIP OF PARLIAMENT

CONCERNS RAISED AGAINST THE CURRENT ANTI-DEFECTION LAW



1 The law succeeded in checking the regular phenomenon of unstable governments and horse-trading due to floor crossing by legislators.

2 However, it played a huge role in encouraging the centralisation of India's political parties.

3 Legislators in India now cannot take a stand against party leaders or defy the party whip, and use their conscience to vote on a Bill in the House due to fear of losing their seat under the provisions of the Anti-Defection law.

4 This has also the effect of disincentivising lawmakers from seriously thinking, researching for best practices to incorporate into legislation that is before the House for consideration and focus their energies on procedural matters.

PARLIAMENT

MEMBERSHIP OF PARLIAMENT

CONCERNS RAISED AGAINST THE CURRENT ANTI-DEFECTION LAW

- 5 Also, a legislator cannot question the **sweet deals or alliances between top party leaders**. It affects the independence of MPs/ MLAs.
- 6 Constitution drafters didn't intend to give the control of members to political parties. But this law gives too much control to political parties.
- 7 Many members speak up their mind which will lead to more discussion and thus **better debates and solutions in parliament**. Anti-defection law is against this.
- 8 In a diverse country like India, members also represent their constituencies. Hence, every member needs to be given voice to give voice to all regions and sections of the population.

PARLIAMENT

MEMBERSHIP OF PARLIAMENT

POSSIBLE REFORMS THAT CAN BE MADE TO ANTI-DEFECTION LAW

- 1 Nowadays, no real democratic discussions happen inside political parties about major issues affecting the country. Individual MPs and MLAs need to be empowered to think independently.
- 2 Anti-defection law should be applied only to confidence and no-confidence motions or only when the government is in danger (Law Commission 170th report, 1999).
- 3 Whips must be issued only for those legislative items that threaten the stability of government.
- 4 As recommended by the Dinesh Goswami Committee, the government should consider giving the power to decide on disqualification under the Act to the President or the Governor, who shall act on the advice of the Election Commission.
- 5 This would make the process similar to the disqualification procedure as given in Representation of Peoples Act. There can be additional penalties for defectors as well.

PARLIAMENT

MEMBERSHIP OF PARLIAMENT

POSSIBLE REFORMS THAT CAN BE MADE TO ANTI-DEFECTION LAW



RECENT EXAMPLES

- Amar Singh and Jaya Prada, who were members of the Rajya Sabha and the Lok Sabha, respectively, moved the court on their expulsion from the Samajwadi Party on February 2, 2010, anticipating ouster from Parliament.
- They were expelled for indulging in activities inimical to the party's political interests and damaging its image.

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